

the attorney's mistake, inadvertence surprise or neglect. *Martin Potts & Assocs., Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438-441. Relief must be granted "unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." *Ibid.* A motion for relief under section 473(b) "shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted" Code Civ. Proc. § 473(b).

Analysis

Rolling Green moves to set aside entry of default due to attorney "mistake, inadvertence, surprise or neglect." Code Civ. Proc. § 473(b). That request has merit.

Defendant filed this motion on March 4, 2026, slightly more than one week after the February 24, 2026, entry of default. Counsel for Defendant provides an affidavit regarding the excusable neglect involved. See Dineros Decl. Counsel claims the default was entered as a result of his belief the parties were undergoing settlement negotiations, and the unintentional oversight of being occupied by an ongoing trial. Dineros Decl., ¶¶ 4, 8-9. Counsel explains that on January 6, 2026, he emailed Plaintiff's counsel regarding a settlement demand, and on January 21, 2026, Plaintiff served an initial demand via email. Dineros Decl., ¶¶ 4, 7; Ex. B. Counsel states he was then engaged from late January 2026 through March 2, 2026 in trial preparation and trial attendance, which reached a jury verdict on March 2, 2026. Dineros Decl., ¶ 8. Counsel avers he immediately served Defendant's Answer on March 3, 2026, at which time he learned of the default. Dineros Decl., ¶ 9. Counsel then emailed Plaintiff's counsel that failing to file the answer was an "unintentional oversight," indicating counsel "was under the impression that we were working towards a resolution," and asking Plaintiff to stipulate to set aside default. Dineros Decl., ¶ 9. Plaintiff's counsel declined to stipulate and Defendant's counsel thereafter filed the underlying motion. Pritchard Decl., ¶¶ 9-10.

Defendant has demonstrated it is entitled to mandatory relief under Code of Civil Procedure section 473(b).

If mandatory relief is granted, the court must "direct the attorney to pay reasonable compensatory legal fees and costs" to the opposing counsel or parties. Code Civ. Proc. § 473(b). Plaintiff, a self-represented party, has made no request for either fees or costs or provided proof of the same. The Court concludes that Plaintiff has forfeited his right to the same.

5. CU0001483 Susan Gabrielle vs. Phillip G. Conlon, Jr.

The Court received the joint status report filed by the parties on May 12, 2026. Appearances are required by the parties to discuss a timeline for Defendant's retention of a realtor and listing of the property, or alternatively, refinancing the property. The Court is favorably inclined to set a further review on July 20, 2026, at 09:00.